



Guidance: Migrating to Cloud Services

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Migrating to cloud services

When migrating data to the Cloud there are a number of privacy and data protection considerations, not just around data protection (GDPR) but also regarding how the project will be planned and managed.

The main risk to the rights and freedoms of individuals is related to how Office365 or Google is implemented, configured and used, for example, unauthorised access. This is why it is important to understand the relationship with your service providers completing the work and infrastructure for hosting the service. It is important to plan the work, assess the main risks and manage the move to Cloud services. It is therefore critical you understand how the project will be managed and how and when things will get done.

The relationship with data protection (GDPR)

Understanding the Service Provider, Controller and Processor relationship

Firstly there are 3 things to consider, plan and manage when you move to Cloud services:

1. Your organisation (customer) - Controller
2. IT provider completing the migration - Processor
3. Cloud service provider - Processor

Note: your Processors (service providers) would likely be Controllers in their own right but classed as Processors for the provision of the service. For example: 'Microsoft, as a data processor, processes Customer Data to provide Customers the Online Services in accordance with Customer's documented instructions'.

Controller

As a Controller, you determine the purpose and means of the processing (Article 4(7)) and are responsible for ensuring the confidentiality and integrity (article 5(f)) of data and to ensure technical and organisational measures are in place (Article 32). You are also responsible for assessing the risks if necessary, via a Data Protection Impact Assessment (Article 35) and if so, will need to involve your processors and DPO to support this.

Processor

The Processor processes data on behalf of the Controller (Article 4(8)). This means the Processor only processes on the **documented instructions** of the Controller (article 28). In the case of the Cloud provider, who offers the infrastructure as a service, it is deemed a Processor as long as the overall purpose is determined by the customer. **Your IT provider, although not always directly handling personal data, is completing the migration under instructions from you. They will be consulting with you, have access to your data, migrating and maintaining of,**

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and decommissioning of systems. Your IT provider would also be deemed a Processor for this task.

The Processor is still accountable under GDPR, including the security of the processing (Article 32) and assisting the Controller by appropriate technical and organisational measures and with their obligations for complying with data breach notifications (articles 33 and 34).

For an organisation such as a school, you will be relying on the skills and technical expertise of your IT provider and Cloud service provider for your migration. This does not, however, mean you should not do anything, as there will still be risks that need to be mitigated and as a Controller, you should have documented what is being done with an understanding of the scope and stages for the work being completed.

Under article 28 of the GDPR, a Processor should only process personal data on the **documented instruction** from the Controller. **So what does this mean in reality for an organisation that has outsourced their IT and have decided to use either Microsoft or Google for their Cloud solutions, or a combination of both? Please refer to the top tips below:**

Top Tips checklist

The top tips checklist below will highlight some of the key elements to successfully migrating to the Cloud. The checklist can be used with your project plan to track and monitor progress with your IT professionals completing the migration:

Documents

The GDPR places more emphasis on data processing agreements, contracts and SLAs. What contracts has your organisation got in place with your service providers? Have you updated internal documents?

- For **Microsoft** please refer to the [Microsoft DPIA](#) guidance and [Microsoft Privacy FAQs](#), Microsoft [Online Services Terms](#) and [Data Protection Addendum](#).
- For **Google** please refer to: https://edu.google.com/why-google/privacy-security/?modal_active=none
- For your **IT service provider**: What contract and SLA are in place and does it include, for example, staff training? Check with your IT provider what is in the SLA and contract.
- **Internal documents**: Are school policies being updated to reflect best practice, risks and responsibilities for the new systems (IT Policy, Working from Home Policy, Acceptable Use Policy)?

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Transparent Information

Under article 5 (a) of the GDPR, data should be processed lawfully, fairly and transparently. To support this your Privacy Notice should be updated to include any new third party Processors.

Privacy by Design and Data Protection Impact Assessments (DPIA)

Not only is it a requirement under the GDPR (article 25 and 35), it is good practice to think about and plan for the migration and risks associated. What is your strategy for migration to the Cloud?

Please refer to [DPE's RoP](#) for migrating to the Cloud. The RoP has detailed the risks for each step as detailed below:

1. Migration planning with IT provider
2. Data cleanse of existing systems
3. Prepare structures/controls for Cloud services
4. Export data to Cloud services
5. Verify data and complete checks on setups
6. Rollout to staff
7. End of existing (old) services

The RoP can be tailored specifically for your organisation. Details of DPEs methodology for completing a DPIA within the RoP are detailed in the [DPIA](#) best practice area.

Migration Planning with your IT Provider

Do you have a strategy and project plan (does your IT provider)?

For example:

- Is there a road map for migration (scope of work)?
- Have the scope and benefits of this project been communicated to staff?
- Who is managing which part (roles and responsibilities) and what structures need to be in place?
- Have priorities been established for the migration components and do you know what is being migrated, what is being enabled and what are the steps and risks for each step?
- How will you manage the stages of work and prioritise? Who is responsible internally for communication with suppliers and staff?
- Have you established levels of integration; will you use more than one provider i.e. Microsoft365 and Google?
- Will you still be using a physical server? How will you manage the transfer?

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- How do the school wish the staff to work once the new systems are in place?

Examples of other migration planning questions to ask your IT professional completing the work:

- What platforms are being used? Are they suitable for their intended use?
- What are the success criteria for this project? How will the school or IT professionals evidence this?
- What data is moving? Where does it currently reside? Is data moving from the school systems or from another service provider? What happens to any data not moved?
- Is email part of the project?
- Will legacy emails be moved to the new system? What happens to any emails not moved?
- Does the migration plan include generic mailboxes such as school@... office@... or head@...
- Are the new services running alongside the existing system and how long will this be in place?
- When do the SLA's for any current service end and how long will the school have access to that data?
- Is school IT infrastructure being retired after this project? What is the timescale for the shutdown of old hardware?
- Is data being moved included in the current backup and Data Recovery (DR) solution? Will there be interruptions to this during the move? What systems are in place to secure and recover lost data in the new service?
- How is the switchover process going to be managed? Will you still have access to your email or data during the move? If not, how long will systems not be accessible?
Consider this when scheduling the work.
- What systems are in place for storage systems and migration tools to ensure data security?
- Does the new service use existing usernames and passwords? If not what naming strategy will be used and does the password policy fit alongside the school's existing strategy?
- Who is responsible for testing of new service and data areas? Will this be completed prior to the systems switching over?
- How is access to the new cloud service controlled? Does it allow access from devices or locations outside of recommended working practice? How does the school or IT service provider monitor and report on this?
- Who will provide operational and training documentation for the new service?
- Do staff have a way to report or escalate problems or concerns?

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Complete a data audit and data cleanse

It is very likely that you will have data stored on physical servers and possibly on more than one Cloud platform. For the GDPR principles to be adhered to it is important to ascertain exactly what is stored on which system. This will help when developing the new system and support with determining what is still needed, what can be archived and what data can be securely destroyed:

- Have the staff been encouraged to complete a data cleanse of systems and emails prior to migration?
- Have you worked with your IT provider to search for data no longer needed?
- Have you asked staff to tidy personal folders, deleting data no longer needed?
- Is your data retention schedule up to date?

Staff training and awareness

People will always be the main weakness in any system, so it is vitally important not to make assumptions about staff skills in using the new platform. How will staff be trained and how will you review staff competencies and abilities in operating within the new platform? You should be thinking about this at the start of the process and discussing with IT professionals completing the work.

Information Classification and permissions

If you are moving school data to a new platform:

- Have you thought about categories of data and permissions to folders - how will this be managed?
- What is the current school strategy for data classification and drive spaces?
- Have existing storage systems been audited?
- Do they currently meet the school requirements?
- How will this access control be replicated or improved in the new system?
- Is there any sensitive or red category data being moved?
- What extra measures are in place to ensure this data is secure during the migration?

Go to the [best practice information classification](#) area of the DPE website for model documentation and guidance.

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Opportunity to rethink file structure and naming conventions

Now that you have completed a data cleanse of systems prior to the migration, you will have an opportunity to identify if there are any improvements to file structures and naming conventions that can be made. Importantly, what access controls are in place for the new system?

Decommissioning backup disks and physical servers

What guarantees do the organisation completing the migration give to correctly decommissioning any equipment? It will be likely that some data will remain on existing systems. How will any decommissioning be managed?

Getting back to Business as Usual (BaU)

The objective is to work from the project change stage, to BaU with all staff being skilled and comfortable with using the new system. This is how you will achieve the most benefits, efficiencies and cost savings. Some of the things to be considered are:

- Review of project and benefits to the business
- Updating policy documentation
- Documented procedures and guidance
- Review of staff skills (i.e. questionnaire) to determine levels of training requirements, including SLA with the service provider to include the provision of training
- Clearly communicated escalation guidelines for general queries and support
- Remember to regularly communicate with staff and raise awareness, especially as new components are introduced and new staff members join the organisation.